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REFUGEE SETTLEMENT



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REFUGEE SETTLEMENT

You can apply for refugee settlement if you have been granted asylum or humanitarian protection status in the UK and have held this status for 5 years. You must apply before the expiry of your 5-year grant of permission.

Any dependants granted asylum or humanitarian protection at the same time as you, who were dependent on your claim, may also be included in the application.

Eligibility Requirements for Refugee Settlement

The requirements for indefinite leave to remain in the UK as a refugee or person granted humanitarian protection are that:

- You have held a residence permit as a refugee or person granted humanitarian protection status (or their dependant), for a continuous period of five years in the UK; and
- This residence permit has not been revoked or not renewed; and
- You have not been:
 - Sentenced to imprisonment for 4 years or more; or
 - Sentenced to imprisonment for between 12 months or 4 years if less than 15 years has passed since the end of your sentence; or
 - Sentenced to imprisonment for less than 12 months, if less than 7 years has passed since the end of the sentence; or
 - Received a non-custodial sentence (such as a fine or community sentence) or other out of court disposal (such as a penalty notice or caution) that is recorded on your criminal record, if less than 2 years has passed since you received this; and
- The Secretary of State does not consider that you have caused serious harm by your offending; and

- The Secretary of State does not consider that you have persistently offended and shown a particular disregard for the law; and <https://www.google.co.uk>
- (2) The Secretary of State does not consider that it is undesirable to grant settlement in the UK in light of your conduct, character or associations or the fact that you represent a threat to national security. <https://www.google.co.uk>

What Else Do I Need to Know About Refugee Settlement?

Your residence card as a refugee may be revoked or not renewed if the Secretary of State is satisfied that the Refugee Convention ceases to apply for any one or more of the following reasons:

- You have voluntarily returned to your country of nationality;
- Having lost your nationality, you have voluntarily re-acquired it;
- You have acquired a new nationality, and enjoy the protection of the country of your new nationality;
- You have voluntarily re-established yourself in the country which you left owing to a fear of persecution;
- There has been a significant and long-lasting change in circumstances so that it is not reasonable for you to refuse to seek protection in your country of nationality.

Your residence card as a refugee may be revoked or not renewed if the Secretary of State is satisfied that you are excluded from the protection of the Refugee Convention for any one or more of the following reasons:

- You should be, or are, disqualified from being a refugee (e.g. due to having committed a crime against peace, a war crime, a crime against humanity, or acts contrary to the purpose and principles of the United Nations);
- You have used a misrepresentation, submitted false documents, or omitted facts which were decisive for the grant of asylum;
- There are reasonable grounds for regarding you to be a danger to the security of the UK;
- You have been convicted of a particularly serious crime and constitute a danger to the community of the UK.

A grant of humanitarian protection status may be revoked or not renewed for analogous reasons.

If your application for settlement is refused, but the Home Office does not propose to revoke your status as a refugee or a holder of humanitarian protection status, as you are still in need of protection, you will be granted limited leave for a period of 3 years, which may be renewed.

How Our Immigration Barristers Can Help

immigration barristers

Our immigration barristers have extensive experience of preparing and submitting applications for settlement following a grant of asylum or humanitarian protection.

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We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to persons who have been granted refugee or humanitarian protection status as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for asylum



Human rights-based applications



Challenging revocation decisions



WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our Refugee Settlement team on 0203 617 9173 or complete our enquiry form.

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(<https://immigrationbarrister.co.uk/article-8-overseas-family-members-refugee-family-reunion/>)

By Richmond Chambers -

14 Oct 2024

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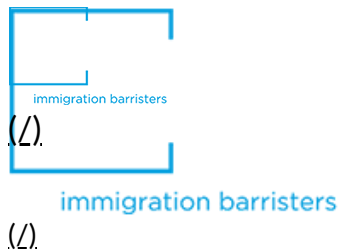
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